

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-26

TRIPLE L GLOBAL, LLC,

COMPLAINANT,

v.

SLI, INC. d/b/a SEALINK INTERNATIONAL

RESPONDENT

**RESPONDENT’S MOTION TO DISMISS FOR LACK OF SUBJECT
MATTER JURISDICTION AND FAILURE TO STATE A CLAIM**

Respondent SLI, Inc. d/b/a Sealink International, (“Sealink”) submits this Motion to Dismiss Verified Complaint of Triple L Global, LLC (“Triple L”) for Lack of Subject Matter Jurisdiction and Failure to State a Claim pursuant to 46 C.F.R. § 502.69(g), and shows as follows:

I. INTRODUCTION & BACKGROUND

1. Triple L and Sealink were engaged in an ongoing business relationship subject to a written contract containing terms and conditions (the “Agreement”)¹. In the course of performance under the Agreement, Triple L paid Sealink freight charges, and Sealink acted as an agent for Triple L, ensuring that payments to common carriers were made and coordinating Triple L’s shipments. At all times relevant to this proceeding, Sealink was acting as a non-vessel operating

¹ **Exhibit 1:** Agreement.

common carrier (“NVOCC”). In turn, Triple L was responsible for filing booking requests with Sealink, which specifically required a description of the cargo to be transported.

2. In executing the Agreement, Triple L confirmed, represented, warranted, and agreed that, when it placed a request with Sealink for transportation of Dry Goods, the Dry Goods (1) were not Dangerous Goods and have not been incorrectly declared, and (2) are safe for carriage by sea.²

3. Triple L further agreed to “immediately advise Sealink of any errors, incorrect statements, or omissions on any document or declaration [Triple L] files or is filed on [Triple L’s behalf,” to “use reasonable care to ensure the correctness and completeness of all such information it directly or indirectly supplies,” and notably, to “indemnify and hold Sealink and Sealink Providers harmless from any and all claims asserted and/or liability or losses suffered by reason of any incorrect, incomplete, or false statement supplied by [Triple L] to Sealink.”³ Triple L also agreed to indemnify Sealink from any claims arising from “any conduct of [Triple L] that violates any federal, state, and/or other laws of any Governmental Authority or any breach of these Terms and Conditions[.]”⁴ Regarding the goods to be shipped, Triple L agreed that (1) all statements provided were true and correct and (2) the goods in the booking were not classified as dangerous goods as defined and/or classified in the International Maritime Dangerous Goods Code 2016.⁵

4. On February 9, 2024, Triple L submitted Booking Request No. BR-00281789 with Sealink, describing the cargo as “Metal Scrap” that was not hazardous. Sealink accepted Triple L’s request and issued Booking Confirmation No. NAM9409473.

² *Id.*, ¶ 8.

³ *Id.*, ¶ 10.

⁴ *Id.*, ¶ 20.

⁵ **Exhibit 1:** Agreement, at pg. 7, ¶¶ 9, 10.

5. Upon the carrier's inspection of the cargo, it discovered the shipment labeled scrap metal contained batteries, which are classified as dangerous goods by the International Maritime Organization. Triple L's declarations as to the contents of the shipment were false and in violation of the maritime standards applicable to the shipment, along with Sealink's Terms of Service and Terms and Conditions, the Shipping Act, and regulations related to transporting hazardous goods set forth by the Department of Transportation. Due to the false declaration, Triple L's shipment was impounded by the carrier, and the carrier blacklisted Sealink, causing Sealink to lose its bookings which, as a result, caused a substantial loss in revenue.

6. After significant attempts to settle the conflict with Triple L, Sealink filed suit against Triple L on July 25, 2024 in the Northern District of Texas, asserting claims of breach of contract.⁶

7. Subsequently, on August 2, 2024, Triple L filed this action with the Commission under 46 U.S.C. § 41301, seeking reparations for Sealink's alleged violations of 46 U.S.C. § 41102(c) and 46 U.S.C. § 41103.

8. Triple L alleges violations of 46 U.S.C. § 41102(c) based on allegations that Sealink "seized" Triple L's cargo, altered the name of the shipper and consignee on the ocean carrier's bill of lading, and sold the cargo to an unknown buyer, allegedly causing Triple L damage.⁷ Additionally, Triple L claims it is entitled to reparations based on Sealink's communications with Triple L's buyer and consignee related to Triple L's misdeclaration of the cargo, the delay caused

⁶ The Agreement contains a forum selection clause, binding disputes between the parties to be litigated in the United States District Court having jurisdiction over Collin County, Texas. *See Exhibit 1*, at pg. 11, ¶24.

⁷ Verified Complaint, ¶ 37.

by Triple L's misdeclaration, and the carrier's misdeclaration fees required to release the containers.⁸

9. Sealink moves to dismiss the Complaint in its entirety as a matter of law based on the allegations in the Complaint. Triple L has failed to establish the Commission's subject matter jurisdiction over this dispute and Triple L's purported claims fail to state a claim upon which relief may be granted. This proceeding an attempt to evade liability for its numerous breaches of the Agreement for which it has no defense in Federal Court.⁹

II. ARGUMENT & AUTHORITIES

10. A motion to dismiss is a dispositive motion that may be filed with the Commission. 46 C.F.R. § 502.69(g). Because this rule does not have express rules governing motions to dismiss, the "Commission looks to Federal Rule of Civil Procedure 12(b)(1) when considering dismissals based on lack of subject matter jurisdiction." *YSN Imports Inc v. Oberlander*, 2021 WL 2935838, at *3 (ALJ Order, July 7, 2021). A party challenging jurisdiction may make either a facial attack, which assumes that well pleaded allegations are true, or a factual attack, which "challenges the existence of subject matter jurisdiction in fact, irrespective of the pleadings, and matters outside the pleadings, such as testimony and affidavits, are considered." *Carlstar Group LLC v. UTI United States, Inc.*, 1 F.M.C.2d 103, 116 (FMC 2018). The party asserting subject-matter jurisdiction "has the burden of proving its existence by a preponderance of the evidence." *Garanti Finansal Kiralama A.S. v. Aqua Marine & Trading, Inc.*, 697 F.3d 59, 65 (2d Cir. 2012).

⁸ Verified Complaint, ¶ 5.

⁹ See *Sealink International, Inc. vs. Triple L Global, LLC*, Case No. 3:24-CV-01907-X, filed in the Northern District of Texas, Dallas Division.

11. Furthermore, in deciding whether a Complaint fails to state a claim upon which relief can be granted, the Commission relies on Rule 12(b)(6): “the Commission has relied on Federal Rule of Civil Procedure 12(b)(6) and the federal caselaw interpreting it” in evaluating whether a complaint “states a cognizable claim under the Shipping Act.” *Cornell v. Princess Cruise Lines, Ltd., Carnival PLC, and Carnival Corp.*, 33 S.R.R. 614, 620 (FMC 2014) (citing *Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc.*, 32 S.R.R. 126, 136 (FMC 2011)). In its application of the 12(b)(6) standard, the Commission applies a two-step analysis:

The first step is typically to identify pleadings that are not entitled to the assumption of truth because they are legal conclusions. These conclusions can provide a framework, but they must be supported by factual allegations. The next step is to assume the truth of the well-pleaded factual allegations and determine “whether they plausibly give rise to an entitlement to relief.”

The factual allegations needed to reach plausibility will vary depending on the complexity of the case, “both to give the opposing party notice of what the case is all about and to show how, in the plaintiff’s mind, the dots should be connected.” “Determining whether a complaint states a plausible claim for relief will . . . be a context-specific task that requires the reviewing court to draw on its judicial experience and common sense.”

Maier Terminals, LLC v. The Port Authority of New York and New Jersey, 34 S.R.R. 35, 58 (FMC 2015).

12. Meeting the plausibility standard “simply calls for enough fact[s] to raise a reasonable expectation that discovery will reveal evidence” of the alleged violation. *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 556 (2007). The complaint must be sufficient to “give the defendant fair notice of what the . . . claim is and the grounds upon which it rests.” *Id.* at 555.

A. The FMC Lacks Jurisdiction over Triple L’s Alleged Violations

i. Complainant’s 46 U.S.C. § 41102(c) claim does not relate to the “receiving, handling, storing, or delivering” of property.

13. Whether claims asserted are within the Commission's jurisdiction is a threshold issue. *River Parishes Co. v. Ormet Primary Alum. Corp.*, 28 S.R.R. 751, 767 (FMC 1999) (upholding the general rule that federal agencies resolve jurisdictional issues before addressing merits). Like any other federal agency, the Commission has subject matter jurisdiction only over violations within its legislative scope, in this instance, the Shipping Act. *See* 46 U.S.C. § 41301(a). Complainants have the burden of proving the existence of both subject matter and personal jurisdiction. *Boudreau v. United States*, 53 F.3d 81, 82 (5th Cir. 1995). Subject matter jurisdiction cannot be established when the alleged wrongful conduct falls outside the scope of the Shipping Act provision at issue. *Cargo One Inc. v. COSCO Container Lines Co., Ltd.*, 28 S.R.R. 1635, 1643 (FC 2000).

14. Section 41102(c) prohibits common carriers, marine terminal operators, or ocean transportation intermediaries from failing to establish "just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property." 26 U.S.C. § 41102(c). This section is explicitly limited to regulations and practices with respect to property. *See Definition of "Package"*, 23 S.R.R. 111, 114 (FMC 1985) (stating that "Sections 17 and 10(d)(1) [of the 1984 Act] do not empower the Commission to address unjust or unreasonable carrier activity that relates to the transportation of property.") Further, "in order for the Commission to assert jurisdiction" over an alleged violation of § 41102(c)'s predecessor, the practices at issue "must have an underlying purpose related to terminal operation." *Louis Dreyfus Corp. v. Plaquemines Port, Harbor & Terminal District*, 25 FMC 59, 67 (FMC 1982).

15. Triple L's alleged violations of §41102(c) are not subject to the Commission's subject matter jurisdiction. Triple L's allegations are based on Sealink's supposed "failure to... adhere to FMC regulations that require transparency with respect to acting as a forwarder agent,

to provide an accounting of \$35,000 that Complainant deposited with Respondent, and continu[ing] to alter Complainant's bill of lading.”¹⁰ Triple L then refers to Sealink's “website terms and conditions that run afoul of FMC regulations that require licensed OTI OFFs to act in the best interest of its principal, by among other things, account to its principal for refunds, overpayments, and to not engage in any fraudulent activity.”¹¹ These allegations are not connected with nor do they relate to “receiving, handling, storing, or delivering property” or “have an underlying purpose to terminal operation” as required to invoke the FMC's jurisdiction over Triple L's claim. Instead, each of these claims is directly related to, and based on, the Agreement between the parties and therefore not subject to the Commission's jurisdiction. The active Federal Case is the proper venue to address any issues relating to the Agreement.

16. Because Triple L's claimed violations of § 41102(c), on their face, do not involve regulations or practice over which the Commission has jurisdiction, they must be dismissed for want of subject matter jurisdiction. *See e.g., Crocus Inv., LLC v. Marine Trans. Logistics, Inc.*, 34 S.R.R. 327 (ALJ June 17, 2006) (dismissing claimed violations of § 41102(c) for lack of jurisdiction when claims exceeded the statute's scope).

ii. The Commission does not have jurisdiction over one-time events that are not “normal.”

17. Triple L's assertion that Sealink engaged in unjust and unreasonable practices fails to conform to the Commission's rigorous definition of a “practice,” and thus does not fall within the FMC's jurisdiction. A claimant must show that “the unreasonable regulation or practice was the normal, customary, often repeated, systematic, uniform, habitual, and continuous manner in

¹⁰ Verified Complaint, ¶ 35.

¹¹ Verified Complaint, ¶ 36.

which the regulated common carrier was conducting business.” *Hangzhou Qianwang Dress Co., Ltd., v. Rdd Freight International Inc.*, 2019 WL 6124914, at *10 (FMC Nov. 7, 2019); *see also, European Trade Specialists v. Prudential-Grace Lines*, 19 S.R.R. 59, 63 (FMC 1979) (holding that unless respondent’s “normal practice was not to notify the shipper, such adverse action cannot be found to violate the section as a matter of law.”); *A.N. Deringer, Inc. v. Marlin Marine Services, Inc.*, 25 S.R.R. 1273, 1276 (SO 1990) (finding that an isolated error does not amount to failure to establish, observe, and enforce just and reasonable regulations and practices); *Kamara v. Honesty Shipping Service*, 29 S.R.R. 321, 322 n.8 (ALJ 2001) (holding that complainant must demonstrate regulations and practices, as opposed to identifying what might be an isolated error); *Wells Lamont Corp. v. Bowles*, 149 F.2d 364, 366 (Em. Ct. App. 1945) (“a practice is a custom or usage, a customary usage, something habitually and uniformly performed”); *Whitam v. Chicago, R.I. & P. Ry. Co.*, 66 F. Supp. 1014, 1017 (N.D. Tex. 1946) (a “practice” typically must involve not only repetition, but also application to multiple customers).

18. Further, unlike this case, evidence that a respondent engaged in the same unreasonable conduct with other shippers is given significant consideration. *Hangzhou*, WL 54067262 at *5; *see also, Whitam v. Chicago, R. I. & P. Ry. Co.*, 66 F. Supp. 1014, 1017 (N.D. Tex. 1946) (explaining that a “practice” is a “systemic doing of the acts complained of” and finding that plaintiff did not sufficiently show the defendants engaged in a “practice” when he only alleged an individual matter between himself and defendants).

19. Triple L’s complaint fails to plead a plausible claim, as Triple L admits that there was nothing “normal” about the circumstances surrounding Triple L’s shipments giving rise to this proceeding. As Triple L states, it “shipped over 250 containers with Sealink without any issues or

problems” between April 2023 and May 2024.¹² On the occasion giving rise to this proceeding, Triple L deliberately misdescribed the cargo as non-hazardous, and such misdescription was uncovered by the carrier, who charged Sealink a tariff based on this false description.

20. The Shipping Act grants the FMC jurisdiction over practices that are not just and reasonable—absent allegation that Sealink frequently encounters disputes where its customers falsely declare their cargo, causing Sealink to incur numerous fines and lost profits, Triple L has failed to show Sealink’s actions are a “practice” over which the Commission has jurisdiction. *See e.g., Hangzhou*, 2 F.M.C.2d at 173 (finding that a carrier’s act of releasing cargo was not “normal” where the carrier was misled and induced to do so by a third party).

21. Triple L’s claim is regarding a single occurrence in response to Triple L’s egregious violations of shipping law that subjected Sealink to enormous liability and business losses, the conduct alleged is not “normal” or a “practice” and Triple L’s claim should be dismissed for lack of subject matter jurisdiction.

iii. Triple L is not a “direct purchaser” and has no standing to seek reparations.

22. Any person may file a complaint alleging a violation of the Shipping Act that suffers “actual injury” as a result of the violation. 46 U.S.C. § 41301(a); *In Re Vehicle Carrier Services*, 1 F.M.C.2d 45, 81 (FMC 2018). “Parties who have not actually paid contested charges” are not permitted “to claim them as reparations in the absence of a valid assignment of the claim from the paying party.” *California Cartage Co. v. Pacific Maritime Association*, 23 S.R.R. 420, 427 (FMC 1985); *see also, Trane Co. v. South African Marine*, 19 F.M.C. 375, 378 n.9 (FMC 1976) (“the complainant must show that he has paid the freight or has succeeded to the claim in a

¹² Verified Complaint, ¶ 17.

valid fashion such as by assignment”); *Carton-Print, Inc. v. Austasia Container Express*, 20 F.M.C. 31, 34 (FMC 1977) (“[i]n order to seek reparations . . . complainant must either show that he has paid the freight or has a valid assignment of the claim from the person who did pay the freight.”). Entitlement to recovery relies upon a complainant’s ability to introduce evidence that they actually paid the carrier. *Gov’t. of Guam*, 29 S.R.R. at 908- 09, 2002 FMC LEXIS at *36-42.

23. Triple L has not alleged any facts showing that it paid ocean freight because Triple L did not pay any of the contested tariffs that were imposed by the carrier, nor has Triple L alleged that it received an assignment from the paying party.

24. The Shipping Act grants standing to seek reparations to a limited group: only first-line, direct purchasers of carrier services that suffer actual injury have standing to seek reparations. Triple L admits that it contracted with Sealink for certain transportation services. However, Triple L has not alleged any facts showing that it suffered an “actual injury” because Triple L did not pay the tariffs and inspection fees charged by the carrier—the charges subject to Sealink’s demand, charged to Sealink, and which are the direct consequence of Triple L’s false declaration.

25. Given its lack of injury, Triple L’s request that the Commission evaluate whether Sealink’s demand for tariffs caused by Triple L’s false declaration is “just or reasonable” has no basis. Because Triple L has no “actual injury,” it lacks standing, and thus, the Commission does not have the authority to award reparations to Triple L under the Shipping Act.

B. Triple L Fails to State a Claim for Unjust and Unreasonable Practices Under 46 U.S.C. § 41102(c).

26. Section 41102(c) claim requires that (1) the respondent is an entity to which the Shipping Act applies; (2) the “claimed acts or omissions” occurred on a “normal, customary, and continuous basis;” (3) the challenged practice or regulation relates to or is connected with

“receiving, handling, storing or delivering property;” (4) the practice is unjust or unreasonable; and (5) the practice proximately caused the claimed loss. 46 C.F.R. § 545.4. Where, as in this case, the complainant is seeking a cease-and-desist order, it must prove that the order will address harm proximately caused by violating § 41102(c).

i. Triple L fails to prove Sealink’s acts related to receiving, handling, storing, or delivering property.

27. Triple L’s assertion that Sealink has failed to adhere to the FMC’s “just and reasonable” practices requirements related to accounting, overpayments, and fraudulent activity is not a matter connected with the “receiving, handling, storing, or delivering of property.” 46 C.F.R. § 41102(c). For the reasons stated above, Count I should be dismissed because Triple L has also failed to state a plausible claim under §41102(c).

ii. Triple L fails to demonstrate Sealink engaged in a “practice.”

28. Triple L’s failure to plead facts showing Sealink engaged in a “practice” not only deprives the Commission of subject matter jurisdiction, but also fails to meet the plausibility standard under Rule 12(b)(6). Count I is based on a single occasion with Sealink wherein Triple L claims Sealink was unjust or unreasonable. Triple L failed to make any effort to meet the Commission’s requirements for showing a practice—in fact, Triple L only uses the term “practice” in its complaint when reciting the elements of § 41102(c). This bare minimum effort fails to state a claim under § 41102(c) and thus does not meet the Commission’s pleading requirements. *See Maher Terminals, LLC v. The Port Authority of New York and New Jersey*, 34 S.R.R. 35, 58 (FMC 2015) (holding that mere legal conclusions are not entitled to the presumption of truth).

29. Count I, therefore, should be dismissed because Triple L has failed to plead any facts suggesting Sealink engaged in a “practice” in violation of the Shipping Act.

iii. Triple L fails to plead that the practice was unjust or unreasonable.

30. Should the Commission find that the Triple L has pled facts sufficient to meet its burden to show Sealink engaged in a practice, such practice was just and reasonable. *See e.g., Maersk Line A/S v. Carew*, 588 F.Supp.3d 493, 507 (S.D.N.Y. 2022) (Plaintiff “points to no evidence or grounds for why [defendant’s] collection of the invoiced demurrage and detention charges would violate the Shipping Act ... and instead just relies on conclusory statements to that effect”).

31. “Reasonable” means “a practice, otherwise lawful but not excessive and which is fit and appropriate to the end in view.” *Distribution Services, Ltd. v. Trans-pacific Freight Conference of Japan and Its Member Lines*, 1988 WL 340659, at *6 (FMC Jan. 6, 1988). In the context of liquidating maritime liens, the Commission has stated that “reasonable notice to cargo owners that their cargo may be considered abandoned, subject to a lien, and liquidated” would be a “reasonable business practice.” *Mavl Capital Inc. v. Marine Transport Logistics*, 3 F.M.C.2d 135, 164 (FMC 2021).

32. Triple L has failed to satisfy its burden of proof; indeed, other than summarizing the text of § 41102(c), Triple L fails to allege that Sealink’s actions were not “just” or “reasonable” in connection with its claim under that section, nor does it point to a specific provision of Sealink’s terms that it claims violate the Commission’s regulations.¹³ Triple L claims Sealink was unjust and unreasonable as “Sealink represented that it was going to release” the cargo and “without notice to Complainant, seized Complainant’s cargo.”¹⁴ This action by Sealink was an exercise of

¹³ Verified Complaint, ¶¶ 35-37.

¹⁴ Verified Complaint, ¶ 37.

Sealink’s rights as a lienholder—according to the terms and conditions of the Agreement—yet Triple L states Sealink “did not have lien rights.”¹⁵

33. Sealink, acting as an NVOCC, has “an *in rem* maritime lien for unpaid freight against the cargo they are responsible for transporting.” *Logistics Mgmt. v. One Pyramid Tent Arena*, 86 F.3d 908, 914 (9th Cir. 1996). Triple L’s complaint fails to plead any plausible facts that would be sufficient to show Sealink’s actions were not just or reasonable. Triple L’s allegations that Sealink notified Triple L that it “would exercise its rights to sell TLG’s cargo to cover its costs, expenses, and liability” on May 3, 2024, and that Triple L objected to any lien directly contradict the claim that there was not notice of the Lien.¹⁶

C. Triple L Has Not Plead a Plausible Violation of 46 U.S.C. § 41103.

34. A common carrier, MTO, or ocean freight forwarder may not disclose, offer, solicit, or receive any information concerning the nature, kind, quantity, destination, consignee, or routing of any property tendered or delivered to a common carrier, without consent of the shipper or consignee, if the information (1) may be used to the detriment or prejudice of the shipper, consignee, or any common carrier; or (2) may improperly disclose its business transaction to a competitor. 46 U.S.C. § 41103. Further, to demonstrate adequately plead a violation of § 41103, a Complainant’s factual allegations must show that it suffered an “actual injury” as a result of the disclosure. *DNB Exports LLC v. Barsan Global Lojistiks Ve Gumruk Musavirligi*, Docket No. 11-07 (FMC Jan. 24, 2014).

¹⁵ *Id.*, ¶ 10; **Exhibit 1**, at ¶ 11 (“The Customer [Triple L] hereby pledges, assigns, and grants Sealink a general and blanket lien on any and all property[.]”).

¹⁶ Verified Complaint, ¶¶ 19, 20, 22, 28, 29.

35. Triple L’s complaint does not provide any allegations that the communications between Sealink and Triple L’s consignee related to the “nature, kind, quantity, destination, consignee, or routing” of Triple L’s property. Rather, Triple L merely alleges that Sealink’s contacting Triple L’s consignee is a violation of 46 U.S.C. § 41103. However, the Commission has decided otherwise. In a relevant recent decision, a complainant alleged that the respondent engaged in a “smear campaign” by contacting the Complainant’s suppliers and demanding payments for freight and demurrage, and contacting freight forwarders and claiming Complainant had a bad reputation paying its bills. *Way Interglobal Network, LLC v. Shenzhen Unifelix Scm Limited*, 2024 WL 1741944, at *32-33 (ALJ Apr. 19, 2024). The Commission dismissed the claim because the “disclosures were made to the shippers, consignees, agents, and third parties who [the respondent] believed would be involved in releasing the containers.” *Id.* at 34. The Commission explained that “the communication of whether or not to release containers, communicated to appropriate parties, is not a Shipping Act violation without more,” nor are communications about “payment and release of containers and not the ‘nature, kind, quantity, destination, consignee, or routing of any property.’” *Id.*

36. Here, Sealink contacted Triple L’s consignee, notifying the consignee that because of Triple L’s misdeclaration, the cargo was on hold and deposits were needed to release the containers. Even if Triple L’s contention is that the information could be used to its “detriment or prejudice,” its allegations are still insufficient to plead a claim for unlawful disclosure because the subject communication, quoted in the complaint, does not mention the “nature, kind, quantity, destination, consignee, or routing” of Triple L’s goods.¹⁷ A mere recitation of the elements of the

¹⁷ Verified Complaint, ¶40.

violation is insufficient. *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 556 (2007).

37. Therefore, Triple L's claim should be dismissed because it has failed to plead a plausible claim for relief under § 41103(c).

III. CONCLUSION

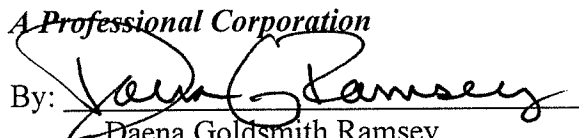
38. Triple L's legal conclusions are unsupported by its own factual assertions. Triple L's allegations related to § 41102(c) fail to invoke the Commission's subject matter jurisdiction due to Triple L's lack of standing and failure to state any plausible claim that would entitle it to relief. Further, Triple L's allegations under § 41103 fall below the Commission's plausibility requirements for complaints, as Triple L has not presented any facts showing the subject communication contained information that Sealink was prohibited from disclosing. For the reasons set forth above, Triple L's claims should be dismissed.

PRAYER

WHEREFORE PREMISES CONSIDERED, Respondent Sealink respectfully requests that the Commission dismiss Complainant Triple L's claims and for any other further relief, at law or in equity, to which Sealink may be justly entitled.

Respectfully submitted,

SHIELDS LEGAL GROUP, P.C.
A Professional Corporation

By: 

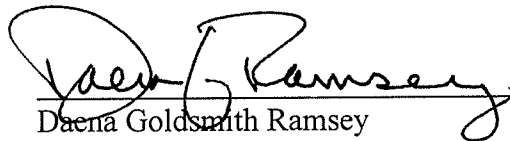
Daena Goldsmith Ramsey
State Bar No. 08093970
dramsey@shieldslegal.com
Victor D. John
State Bar No. 24120119
vjohn@shieldslegal.com
16400 Dallas Parkway, Suite 300
Dallas, Texas 75248
Tel: 972-788-2040

Fax: 972-788-4332

**ATTORNEYS FOR RESPONDENT,
SEALINK INTERNATIONAL, INC.**

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing Motion to Dismiss Verified Complaint of Triple L Global, LLC for Lack of Subject Matter Jurisdiction and Failure to State a Claim and Appendix thereto was filed via email to the secretary@fmc.gov; an original and five (5) copies were delivered via Federal Express #7783 4176 2182 to Secretary, Federal Maritime Commission, 800 N. Capitol Street, NW., Washington, DC 20573-0001; and also served upon counsel for Triple L Global, LLC, Henry P. Gonzalez, LL.M., Gonzalez del Valle Law, 1250 Connecticut Ave., N.W., Suite 700, Washington, D.C. 20036 via email gonzalez@gdvlegal.com and this 3rd day of September, 2024.


Daena Goldsmith Ramsey